

IN THE DISTRICT COURT OF

COUNTY, NEBRASKA

Choose the county

_____,
Plaintiff,

Case No. _____

vs.

**ANSWER AND
COUNTERCLAIM FOR
DISSOLUTION OF
MARRIAGE
(CHILDREN)**

_____,
Defendant.

ANSWER

COMES NOW, _____, the defendant in the
(your full name)
above-captioned matter, and for the Answer to Plaintiff's Complaint for
Dissolution of Marriage, hereby admits, denies, and alleges as follows:

1. Admits Paragraph(s) _____
of the Complaint. (paragraph number(s) with which you agree)
2. Denies Paragraph(s) _____
of the Complaint. (paragraph number(s) with which you disagree)

COUNTERCLAIM

I, _____, the defendant in the
(your full name)
above-captioned action, without assistance of an attorney, hereby state and allege
as follows:

1. I live at _____,
(your street address: if confidential under Nebraska or Federal law, enter
county and state only and provide an alternative address for mailing of notice)
in _____.
(city, county, and state where you live)

11. The following information is provided because of the requirements of the Uniform Child Custody Jurisdiction and Enforcement Act:
- (a) For the last five years, the child(ren)'s addresses and the persons they have lived with are:

First line: DATES: ADDRESS:

Second line: NAME and CURRENT ADDRESS OF PERSON(S)
WITH WHOM THE CHILDREN HAVE LIVED:

- (b) Check the box that applies:

☐ I have not been a party or a witness in any other proceeding concerning the custody of or parenting time with the child(ren).

OR

☐ I have been a party or a witness in another proceeding concerning the custody of or parenting time with the child(ren), as follows:

(name of court)

(case number)

(date of child custody determination, if any)

(c) Check the box that applies:

☐ I know of no other actions or proceedings that could affect this action. This includes actions or proceedings about domestic violence, protection orders, termination of parental rights, and adoptions.

OR

☐ There is currently a proceeding which could affect this action.

(name of court)

(case number)

(date of determination, if any)

(d) Check the box that applies:

☐ I do not know the names and addresses of any person(s) other than my spouse and myself who have physical custody of the child(ren) or claim to have custody or parenting time rights with the child(ren).

OR

☐ The following is a list of the names and addresses of persons other than my spouse and myself who have physical custody of the child(ren) or claim to have custody or parenting time rights with the child(ren).

NAME:

ADDRESS:

12. _____ able to provide support for the child(ren).
(“I am” or “My spouse is”)
13. During the course of the marriage, my spouse and I have accumulated certain items of property, which should be equitably divided between us.
14. My spouse and I have incurred certain debts and obligations during the marriage, and the liability for payment of these debts and obligations should be equitably divided between us.
15. I wish my former name, _____,
(former or maiden name, including first, middle and last names)
to be restored to me.
16. I want this dissolution of marriage proceeding heard by a district court judge.
17. Check the box that applies:
- ☐ There are no existing restraining orders, protection orders, or criminal no-contact orders regarding either party.

OR

- ☐ There are one or more existing restraining orders, protection orders, or criminal no-contact orders regarding one or more of the parties. Details are as follows:
- (a) Type of order: ☐ restraining; ☐ protection;
☐ criminal no-contact.
- (b) Name of court, case number, and date of order for each order:
- _____
- (name of court, case number and date of each order)
- _____
- _____

18. A Parenting Plan ☐ has ☐ has not been developed.
19. Child custody, parenting time, or other access, and child support
☐ are ☐ are not contested.

WHEREFORE, I request the court:

- A. Dissolve my marriage.
- B. Equitably divide the property and debts between my spouse and me.
- C. Award _____ custody of the children of this marriage.
(“me” or “my spouse”)
- D. Set forth parenting time and each parent’s right of access to the minor child(ren).
- E. Award child support according to Nebraska Child Support Guidelines.
- F. Restore to me my former name of _____.
(former or maiden name, including first, middle and last names)
- G. Grant any further relief that may be just.

SIGN IN FRONT OF NOTARY PUBLIC

I hereby swear, or affirm, under penalty of perjury, that the above information is true.

Signature: _____ Date: _____

Printed Name: _____

(of defendant)

Street Address/P.O. Box: _____

City/State/ZIP Code: _____

Telephone Number: _____

*Email address: _____

[*Nebraska Supreme Court Rule § 2-208](#) requires individuals who are not attorneys and representing themselves to provide their email address. The court will use the email address to send notices from the court about this case **except** for items that require another type of service as directed by statute or Nebraska Supreme Court Rule.

If you no longer have email capability or if your email or other contact information changes, you must complete a [Change of Contact Information Form](#).

☐ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is: _____

VERIFICATION

State of _____)
) ss.
County of _____)

This document was acknowledged before me by _____,
this _____ day of _____, 20_____.

Signature of Judge/Clerk of the Court/Notary Public

Notary commission expires: _____
Title: _____ Serial Number (if any): _____

CERTIFICATE OF SERVICE

I hereby certify that on _____, a true copy of the
(date)
foregoing Answer and Counterclaim for Dissolution of Marriage was sent by
first-class mail, postage prepaid, to my spouse at _____
_____.
(spouse's address, including street address, city, state, and ZIP code)

(your name)